



A COMMUNITY OF CHOICE

ENGINEERING

2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

DATE: August 20, 2015
TO: Members of the Governing Body
FROM: John Hall, P.E., City Engineer

SUBJECT: Bid # M-20-15, West Lincolnway Streetscape, Phase 2 Landscape & Irrigation

This project was previously bid in April 2014. At that time, one bid was received from Reiman Corp. & Subsidiary in excess of \$730,000; the designer's estimate was approximately \$220,000. In light of the available project funding, the Governing Body rejected the bid. The scope of the project was subsequently revised and additional funding was identified.

On July 13, 2015, one bid was received for the above referenced project from Reiman Corp. & Subsidiary in the amount of \$969,678.85. The designer's estimate, prepared by Greenscape Designs, was \$388,011.66.

The bid price noted above exceeded the available project funding. Part II, Section 14a of the bid documents provides that "if bid prices exceed the budgeted funds for all projects, individual project prices will be used to select a combination of subprojects that have a cost that can be paid for by the budgeted amount of money."

After consulting the City Attorney's Office regarding the bidding document provision above, the City Engineer's Office identified items of work that could be eliminated in their entirety, as well as items of work whose quantities could be reduced. Unit prices were not negotiated; Reiman Corp. & Subsidiary agreed to honor the bid prices submitted at the reduced quantities shown in Attachment A.

Item No. 100.01, Bonds & Insurance, and Item No. 100.02, Mobilization, are related to the total amount of work to be performed and are typically proportional to the total contract amount. Reiman Corp. & Subsidiary revised the amount of these items to reflect the reduced scope of the project. The revised amounts are reflected in Attachment A.

The Governing Body may elect to:

1. Award the bid to Reiman Corp. & Subsidiary in an amount not to exceed \$484,900.55, as shown in Attachment A.
2. Reject the bid.

Funding for this project in the amount of \$400,000.00 is provided by the Wyoming Department of Transportation. The funding source for the balance of the project costs is 1% Sales Tax 11 - 14.

Risk Review

AGREEMENT
Bid Number M-20-15

Approved as to
form only:
P. Utter
Date: 8/21/2015

By: B
Date: 8-20-15

Contract Number _____

THIS AGREEMENT, entered into this ____ day of _____, _____, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and REIMAN CORP & SUBSIDIARY, hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "West Lincolnway Streetscape, Phase 2, Landscape & Irrigation" all in strict accordance with the contract documents including all addenda thereto, numbered and dated:

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by December 31, 2015. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the Contractor for the performance of the Contract in current funds, the sum of Four Hundred Eighty-Four Thousand, Nine Hundred Dollars and Fifty-Five Cents (\$484,900.55). In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for percentage of estimated work completed. Submittal will be on or before the 25th of each month. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.
- b. The City will withhold ten percent (10%) of the dollar value of the work completed for a minimum of ten (10) days after Notice of Final Settlement has been published in accordance with Wyoming Statute §15-1-113(h). Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety;

Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City and all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 5. CONTRACT. The executed contract documents shall consist of the following:

- | | |
|----------------------------|--|
| a. This Agreement | f. General Conditions and Insurance |
| b. Addenda | g. Supplemental Conditions |
| c. Invitation for Bids | h. Part IV Forms & Notices |
| d. Instructions to Bidders | i. Specifications, Special Provisions, and |
| | Federal Provisions |
| e. Signed Bid Proposal | j. Drawings |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Carol Intlekofer-City Clerk

Richard L. Kaysen, Mayor

Reiman Corp. & Subsidiary
Contractor

By _____

Title

PO Box 1007
Cheyenne, WY 82003

Notary or Corporation Secretary:

SUBSCRIBED AND SWORN TO BEFORE ME

this ____ day of _____, ____.

by _____

My Commission expires: _____